



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-11191

NOV 10 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: April 30, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Alaska Helicopters, Inc., Anchorage, Alaska.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Class 3 liquid fuels in non-DOT specification portable tanks up to 500 gallons capacity by cargo aircraft within and to only remote Alaska locations and provides no relief from any regulation other than as specially stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.101 column (9B); 173.241; 173.242; 173.243; and 175.320.
5. BASIS. This exemption is based on Alaska Helicopters, Inc.'s application dated December 1, 1993, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Diesel fuel	Class 3	NA 1993	NA
Fuel oil (No.1,2,3,5, or 6)	Class 3	NA 1993	NA
Fuel, aviation, turbine engine	Class 3	UN 1863	NA
Gasoline	Class 3	UN 1203	NA
Kerosene	Class 3	UN 1223	NA
Petroleum oil	Class 3	UN 1270	NA

7. PACKAGING AND SAFETY CONTROL MEASURES:

PACKAGING - The packagings prescribed are non-DOT specification elastomer coated multi-ply fabric non-vented and hermetically sealed collapsible containers which are cylindrical in shape. Each container must be capable of the following:

1. Being handled by rolling or by mechanical forklift;
2. Designed, constructed and tested to 45 Psig;
3. Designed and tested to 8 G loading conditions.
4. Withstanding successive free fall drops from 4 meters; and
5. Withstanding use in temperature ranges of -30°F. to 165° F.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. The packaging described in paragraph 7 above must be marked "DOT-E 11191" in letters and numerals at least two inches high on a contrasting background.

c. Each portable tank package must bear the CARGO AIRCRAFT ONLY label as described in 49 CFR 172.448.

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

b. The aircraft to be used in the transport of hazardous materials under the exemption must be on the Alaska Helicopters, Incorporated's List of Approved Aircraft.

NOV 10 1994

c. The aircraft to be use during the transport of the hazardous materials under this exemption must have performance capabilities appropriate to the weight of the hazardous materials being transported.

d. Operation of the aircraft during takeoff, en route, and landing must be conducted over remote areas where an accidental release of the external load will not cause damage to any persons or property on the ground.

e. The loading and unloading of the aircraft and its operation in takeoff, enroute, and in landing must be conducted at a safe distance from heavily populated areas and from any place of human abode or assembly.

f. No person other than a required flight crewmember, an FAA inspector, the shipper or consignee of the material or a representative of the shipper or consignee so designated in writing or a person necessary for handling the material may be carried on the aircraft.

g. Alaska Helicopters, Inc. must have advance permission from the owner or operator of each manned airport where the material is to be loaded or unloaded or where the aircraft is to land while the material is on board.

h. At any airport where the airport owner or operator or authorized representative thereof has designated a location for loading or unloading the material concerned, the material may not be loaded or unloaded at any other location.

i. Advance notice to FAA Civil Aviation Security Field Office (CASFO): Notify the cognizant CASFO at least 24 hours in advance of plans to operate under this exemption. The notification shall include the point of departure, intermediate stops and destinations and the approximate time schedule. Alternate notification procedures may be established subject to the written approval of the cognizant CASFO.

j. Each crewmember of the aircraft must be provided written instructions on the conditions and limitations of the operation being conducted.

k. All rigging, swivels, cargo nets and/or wire rope slings used during the transportation of hazardous materials by means of Class B rotorcraft external load must be rated for four (4) times the gross weight of the Class B external load.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

NOV 10 1994



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA